

24TRCV00218 24TRCV00218

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 24TRCV00218 Hearing Date: July 17, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Friday, July 17, 2026

Department M Calendar No.

PROCEEDINGS

Joyce L. Ezzell v. American Honda Motor Company, Inc.,
et al.

24TRCV00218

1. American

Honda Motor Company, Inc.'s Motion to Compel Compliance with Court Order
Regarding Deposition of Plaintiff and Request for Sanctions

TENTATIVE RULING

American Honda Motor Company, Inc.'s Motion to Compel Compliance
with Court Order Regarding Deposition of Plaintiff and Request for Sanctions is
denied.

Background

Plaintiff filed the Complaint on January 23, 2024. This
is an action under the Song-Beverly Act.

Motions to Compel Compliance

The

party noticing the deposition may move for an order compelling appearance at the deposition and production of documents, pursuant to the deposition notice, from the party deponent who fails to appear or produce materials requested in the deposition notice, and who has not served a valid objection under § 2025.410(a). CCP § 2025.450(a).

Code

Civ. Proc., § 2025.450(h) states:

“If

that party or party-affiliated deponent then fails to obey an order compelling attendance, testimony, and production, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010) against that party deponent or against the party with whom the deponent is affiliated.

In lieu of, or in addition to, this sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against that deponent or against the party with whom that party deponent is affiliated, and in favor of any party who, in person or by attorney, attended in the expectation that the deponent's testimony would be taken pursuant to that order.”

Defendant

moves for an order compelling compliance with the Court order of January 8, 2026 ordering Plaintiff to appear and testify and produce documents at her deposition and for the imposition of sanctions. The motion is made on the grounds that the deponent failed to appear for the re-noticed date of the deposition and the deponent has failed to schedule an alternative date for the deposition.

Plaintiff

filed an opposition stating that the deposition date has been rescheduled to July 10, 2026. The Court notes that this date is prior to the scheduled date of the motion which is July 17, 2026. The Court presumes that the deposition went forward on July 10, 2026. Thus, no additional Court order is required to compel the deposition.

As

to the request for monetary sanctions, the request is denied. It appears that the deposition has been rescheduled upon mutual agreement of the parties and any additional monetary sanctions are not warranted at this time.

Thus,

Defendant's Motion to Compel Compliance with Court Order Regarding Deposition of Plaintiff and Request for Sanctions is denied.

Plaintiff

is ordered to give notice of this ruling.